

25STCV09520 25STCV09520

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C06%2F23%2F2026

Source SHA-256: 4a528fe47721788c0740f806714d3cc0e7a2fdea87ef132bdc76783063719735

Case Number: 25STCV09520 Hearing Date: June 23, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: June 23, 2026 TRIAL DATE: Nov. 17, 2026

CASE: Willis Oliver v. BMW of North America,

LLC

CASE

NO.: 25STCV09520

MOTION TO COMPEL FURTHER

DISCOVERY RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION, SET ONE

MOVING

PARTY: Defendant BMW of North America, LLC

RESPONDING

PARTY(S): Plaintiff

Willis Oliver

TENTATIVE RULING:

BMW's

motion to compel further responses to requests for production is DENIED.

Plaintiff

is ordered to provide copies of the documents identified in the Court's order

of September 8, 2025 within 10 days of this order.

Moving Party to give notice.

DISCUSSION:

On September 8, 2025, this Court ordered the

parties to comply with its standard discovery order for pre-2025 lemon law

cases. Counsel for BMW was present when

that order issued. Notice of the order

was provided to BMW. That order

specifically provides that "[a]ny additional requests for documents may only be

propounded by stipulation and/or court order (via motion upon showing of good

cause." (Order at p. 14.) Nonetheless, BMW served additional discovery

requests seeking documents, as to which it now seeks to compel responses or

further responses.

The motion to compel must be denied. BMW served the requests at issue in violation

of the Court's order. Nonetheless, it

appears (from the moving and opposition papers) that the Plaintiff has also failed

to comply with the Court's order of September 8, 2025, which required the

Plaintiff to produce certain documents within 30 days of that order. Accordingly, the Court orders Plaintiff to

provide the documents identified in the Court's order of September 8, 2025

within 10 days of this order. If these

documents were already produced, nothing more need be done.

All requests for sanctions are denied.

CONCLUSION:

BMW's

motion to compel further responses to requests for production is DENIED.

Plaintiff

is ordered to provide copies of the documents identified in the Court's order

of September 8, 2025 within 10 days of this order.

Moving Party to give notice.

IT IS

SO ORDERED.

Dated: June 23, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may

not adopt the tentative, and may issue an order which modifies the tentative

ruling in whole or in part.